

Centre-State and Inter-State Relations - Solved Practice Workbook

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Prepared from repository knowledge, official material and clearly marked analysis; no unsupported statistics or PYQs.

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Constitution, official judgments, audited UPSC paper routes and dated official institutional sources were checked through 7 September 2026. Exactly 32 original MCQs precede 11 routed PYQs and six original Mains solutions.

Exactly **32 original MCQs** follow. Q1-Q24 test the constitutional and institutional spine; Q25-Q32 target inter-State and reform traps. Correct options follow ABCD eight times. Every option receives a question-specific explanation.

BASIC MCQS / REMEDIATION

Q1. With reference to Article 245, consider the following statements:

1. Parliament may make laws for the whole or any part of India.
2. A parliamentary law is not invalid merely because it has extra-territorial operation.
3. A State law can never affect a person or transaction outside the State.

Which of the statements given above are correct?

A. 1 and 2 only B. 2 and 3 only C. 1 and 3 only D. 1, 2 and 3

Answer: A.

- **A:** Correct. Clauses (1) and (2) give Parliament territorial reach and protect its law from invalidity merely for extra-territorial operation.
- **B:** Incorrect. Statement 3 ignores territorial nexus, under which a real and pertinent connection may support limited extra-State effect of State law.
- **C:** Incorrect. Statement 3 is too absolute even though statement 1 correctly describes Parliament's basic territorial power.
- **D:** Incorrect. The first two statements are textually sound, but the categorical denial of territorial nexus makes statement 3 false.

Examiner trap: Article 245 distinguishes Parliament's extra-territorial rule from the judicially developed territorial-nexus limit on State law.

Q2. Which sequence correctly reflects the constitutional priority under Article 246?

A. State List over Concurrent List over Union List B. Union List over Concurrent List over State List C. Concurrent List over Union List over State List D. All three Lists have identical priority in every conflict

Answer: B.

- **A:** Incorrect. Article 246(3) expressly makes State competence subject to clauses (1) and (2), so List II is not supreme in overlap.
- **B:** Correct. The notwithstanding and subject-to clauses create Union, then Concurrent, then State priority where reconciliation fails.
- **C:** Incorrect. Concurrent competence is subject to Parliament's exclusive Union List power and does not outrank List I.
- **D:** Incorrect. Courts first reconcile fields, but the constitutional clauses still provide a priority structure for irreconcilable overlap.

Examiner trap: Priority is a conflict rule after interpretation; it does not justify reading State entries narrowly from the outset.

Q3. Article 246A is best described as:

A. a new tax entry in the Concurrent List B. exclusive State power over intra-State GST and exclusive Union power over all other GST C. a special simultaneous GST power, with Parliament exclusively competent for inter-State supplies D. a provision making every GST Council recommendation self-executing

Answer: C.

- **A:** Incorrect. Article 246A is a standalone constitutional competence provision rather than an inserted List III entry.
- **B:** Incorrect. Parliament and States share intra-State GST competence; Parliament's special exclusivity concerns inter-State supplies.
- **C:** Correct. The provision creates simultaneous legislative authority and a distinct parliamentary rule for inter-State GST.
- **D:** Incorrect. Legislative competence under Article 246A is separate from the recommendatory role of the Council under Article 279A.

Examiner trap: Do not import Article 254's ordinary Concurrent-List repugnancy structure into Article 246A without examining the special GST design.

Q4. Residuary legislative power, including residuary taxation, is located in:

A. Article 263 and the Inter-State Council B. Article 280 and the Finance Commission C. Article 246A and the GST Council D. Article 248 read with Union List Entry 97

Answer: D.

- **A:** Incorrect. Article 263 concerns advisory intergovernmental coordination and creates no residuary law-making field.
- **B:** Incorrect. Article 280 recommends fiscal distribution; it does not allocate unenumerated legislative subjects.
- **C:** Incorrect. Article 246A is confined to GST and cannot serve as the general constitutional residue.
- **D:** Correct. Parliament has exclusive competence over a matter, including a tax, not enumerated in Lists II or III.

Examiner trap: A matter that fairly falls within List II cannot be pulled into Entry 97 merely by calling it new or nationally important.

Q5. Which combination correctly states the Article 249 route?

A. Rajya Sabha; two-thirds of members present and voting; national interest; resolution up to one year B. Lok Sabha; special majority; financial emergency; resolution up to six months C. Two State legislatures; simple majority; treaty implementation; permanent transfer D. President; Cabinet advice; internal disturbance; automatic State-law repeal

Answer: A.

- **A:** Correct. The Council of States supplies the special trigger, and each resolution may operate for a period not exceeding one year.
- **B:** Incorrect. Lok Sabha and financial emergency are not the institutional or substantive triggers in Article 249.
- **C:** Incorrect. Resolutions of two or more State legislatures belong to Article 252, not Article 249.
- **D:** Incorrect. Article 249 neither begins with presidential satisfaction nor automatically repeals State legislation.

Examiner trap: Article 249 is a Rajya Sabha national-interest gateway, not one of the proclamations in Part XVIII.

Q6. A parliamentary law made under Article 250:

A. continues permanently unless every State agrees to repeal it B. operates while a National Emergency is in force and ordinarily ceases six months after it ends C. requires resolutions of two or more States before enactment D. automatically invalidates every earlier State law for all time

Answer: B.

- **A:** Incorrect. Article 250 is temporary and does not depend on unanimous State consent for its cessation.
- **B:** Correct. The emergency supplies competence, while the six-month tail permits transition after the emergency ceases.

- **C:** Incorrect. State legislative resolutions define Article 252, whereas Article 250 follows an operating Article 352 Emergency.
- **D:** Incorrect. Article 251 makes the State law inoperative only to the extent of inconsistency while the parliamentary law remains effective.

Examiner trap: Match Article 250 only with National Emergency, not with President's Rule or financial emergency.

Q7. Consider the following statements on Article 252:

1. Resolutions of two or more State legislatures initiate the route.
2. The law automatically applies to all States.
3. Another State may later adopt the law.
4. A participating State may amend the law by its own legislation.

Which are correct?

A. 1 and 2 only B. 2 and 4 only C. 1 and 3 only D. 1, 3 and 4 only

Answer: C.

- **A:** Incorrect. Statement 2 is false because the enactment initially applies to the resolving States, not automatically to every State.
- **B:** Incorrect. Both statements 2 and 4 contradict the consent-based territorial design and Parliament's retained amendment power.
- **C:** Correct. Two or more States initiate, and another State may adopt the parliamentary law later by resolution.
- **D:** Incorrect. Statement 4 is false: amendment or repeal must be by Parliament in the like manner.

Examiner trap: Article 252 State consent expands Parliament's territory of operation but does not give participating States unilateral repeal power.

Q8. Which statement correctly distinguishes Articles 253 and 356-357?

A. Both require prior resolutions of two State legislatures. B. Both laws cease immediately when their triggering event ends. C. Article 253 is confined to Union List matters, while Article 356 excludes State subjects. D. Article 253 implements international obligations; a law under Articles 356-357 may continue after President's Rule until altered by competent authority.

Answer: D.

- **A:** Incorrect. Neither route depends on Article 252-style resolutions by two or more State legislatures.
- **B:** Incorrect. Article 357(2) expressly preserves a law after the proclamation until it is altered, repealed or amended.
- **C:** Incorrect. Article 253 can reach a State field for international implementation, while Articles 356-357 concern State legislative power.
- **D:** Correct. The first is an external-obligation route; the second has a distinct post-proclamation survival rule.

Examiner trap: The six-month tails of Articles 249 and 250 must not be copied into the different Article 357 continuation rule.

Q9. Which set is correctly matched?

A. Pith and substance-true character; territorial nexus-geographical connection; incidental encroachment-limited overlap may survive B. Pith and substance-Presidential assent; territorial nexus-Concurrent repugnancy; incidental encroachment-automatic invalidity C. Pith and substance-tax distribution; territorial nexus-treaty implementation; incidental encroachment-Article 356 D. Pith and substance-executive direction; territorial nexus-Finance Commission; incidental encroachment-Article 301

Answer: A.

- **A:** Correct. The three concepts respectively test dominant character, State-law reach and tolerable ancillary overlap.

- **B:** Incorrect. Presidential assent and repugnancy are Article 254 issues, not definitions of pith, nexus or incidental effect.
- **C:** Incorrect. The listed fiscal, treaty and emergency subjects do not describe these competence doctrines.
- **D:** Incorrect. Administrative, fiscal and trade provisions are unrelated to the three judicial tests in the option.

Examiner trap: A law may incidentally touch another List yet remain valid; the doctrine does not authorise substantial occupation of an alien field.

Q10. Which proposition about delegated and colourable legislation is correct?

A. Delegation permits the executive to choose the essential legislative policy without limits. B. Delegated rules must stay within the parent Act and competence; colourable legislation exposes an indirect attempt to do what is constitutionally forbidden. C. Presidential assent validates any delegated rule even if the parent legislature lacked competence. D. Colourable legislation applies only when a law uses deceptive language, regardless of substance.

Answer: B.

- **A:** Incorrect. Essential legislative policy must be determined by the competent legislature; administration may fill bounded details.
- **B:** Correct. Both doctrines insist that constitutional competence cannot be enlarged through subordinate form or legislative disguise.
- **C:** Incorrect. Assent cannot cure lack of legislative field, excessive delegation or a rule exceeding its enabling Act.
- **D:** Incorrect. The colourable-legislation inquiry looks to substance and constitutional capacity, not verbal dishonesty alone.

Examiner trap: Delegation is an implementation technique, not a sixth route for Parliament to enter the State List.

Q11. A State law on a Concurrent subject, repugnant to an earlier parliamentary law, has received Presidential assent. Which result follows?

A. It becomes valid throughout India and displaces Parliament. B. It becomes immune from every future parliamentary enactment. C. It may prevail in that State, but Parliament may later add to, amend, vary or repeal it. D. It automatically converts the subject into the State List.

Answer: C.

- **A:** Incorrect. Article 254(2) gives a State-specific exception, not nationwide priority over Parliament.
- **B:** Incorrect. The concluding words of Article 254(2) expressly preserve later parliamentary override.
- **C:** Correct. Assent qualifies the ordinary priority rule within that State while retaining Parliament's future competence.
- **D:** Incorrect. Presidential assent affects the conflicting law's operation; it does not amend the Seventh Schedule.

Examiner trap: Before applying Article 254(2), confirm that the State law was within State competence and that a real Concurrent-field repugnancy exists.

Q12. Which statement is correct about State Bills and related procedural controls?

A. Previous Presidential sanction and reservation for the President are the same stage. B. Article 201 compels Presidential assent whenever a returned State Bill is repassed. C. Article 255 cures every defect, including lack of legislative competence. D. Article 200 governs Governor action; Article 201 governs Presidential consideration; Article 255 provides only a limited procedural cure.

Answer: D.

- **A:** Incorrect. Previous sanction operates before the legislative step specified by the Constitution, whereas reservation follows passage and presentation.
- **B:** Incorrect. Article 201 contains no Article 200-style command that the President must assent after State reconsideration.
- **C:** Incorrect. Article 255 addresses specified recommendation or sanction procedure and cannot validate substantive incompetence.

- **D:** Correct. The three provisions occupy different stages and have different legal effects.

Examiner trap: Do not convert the 2023 Punjab Governor ruling or the 2025 advisory opinion into a universal fixed assent deadline.

Q13. Under Articles 256 and 257, the Union may:

A. issue constitutionally grounded directions for compliance, non-impediment, specified communications and railway protection B. take permanent control of State police whenever implementation is disputed C. treat every policy disagreement as Article 365 non-compliance D. require prior Union approval for all State executive decisions

Answer: A.

- **A:** Correct. The provisions identify implementation and non-impediment duties plus specific direction fields.
- **B:** Incorrect. Police remains a State field, and the direction provisions do not create an unrestricted takeover power.
- **C:** Incorrect. Article 365 requires actual failure to comply with constitutional directions and still does not automate Article 356.
- **D:** Incorrect. The Constitution does not establish a general prior-approval regime for the State executive.

Examiner trap: Direction power must be tied to the constitutional text; administrative convenience alone is not an independent source.

Q14. Which matching is correct?

A. Article 258-State functions entrusted to Union without Union consent; Article 258A-Union functions entrusted to State without State consent B. Article 258-Union functions may be entrusted with State consent; Article 258A-State functions may be entrusted with Union consent C. Article 260-automatic transfer of State judicial power to the Union D. Article 259-current general power of reciprocal delegation

Answer: B.

- **A:** Incorrect. The directions and consent requirements are reversed in both parts of the option.
- **B:** Correct. Articles 258 and 258A create reciprocal consensual entrustment in opposite directions.
- **C:** Incorrect. Article 260 concerns functions in relation to a territory outside India under an agreement, not absorption of State power.
- **D:** Incorrect. Article 259 is omitted and supplies no operative delegation power.

Examiner trap: Article 258(2) separately allows parliamentary law to confer powers or impose duties and must not be confused with consensual entrustment under clause (1).

Q15. Which statement about All-India Services is correct?

A. Lok Sabha may create one by simple majority resolution without legislation. B. Indian Foreign Service is the third All-India Service. C. Rajya Sabha must adopt a two-thirds present-and-voting national-interest resolution before Parliament creates a new common service. D. Article 312 places every service officer exclusively under day-to-day Union control.

Answer: C.

- **A:** Incorrect. Article 312 assigns the initiating federal resolution to Rajya Sabha and then requires parliamentary law.
- **B:** Incorrect. The Indian Forest Service is the third All-India Service; the Foreign Service is a Central Civil Service.
- **C:** Correct. The special Rajya Sabha threshold precedes legislation creating one or more services common to Union and States.
- **D:** Incorrect. Common cadres involve Union and State control; officers serving State posts are not under exclusive daily Union administration.

Examiner trap: The similar abbreviations IFS and IFoS conceal a high-frequency Prelims distinction.

Q16. Regarding CBI jurisdiction and the 2024 West Bengal ruling, which statement is most accurate?

A. State withdrawal of general consent automatically nullifies all earlier investigations. B. Section 6 consent binds even Supreme Court and High Court orders. C. The 2024 judgment finally upheld every merits claim made by West Bengal. D. Ordinary DSPE exercise in a State needs consent, constitutional courts retain power, and the 2024 ruling rejected preliminary objections without deciding merits.

Answer: D.

- **A:** Incorrect. Withdrawal generally affects fresh ordinary cases and does not mechanically erase all lawfully commenced proceedings.
- **B:** Incorrect. Articles 32 and 226 permit constitutional courts to direct CBI investigation without State consent.
- **C:** Incorrect. 2024 INSC 502 expressly confined its findings to the preliminary objection and left the suit to proceed on merits.
- **D:** Correct. It preserves the statutory federal safeguard, judicial exception and exact procedural status of the Article 131 suit.

Examiner trap: Maintainability is not a merits judgment; use the phrase 'preliminary objection rejected' rather than 'CBI action held unlawful'.

Q17. Which constitutional sequence is correct?

A. Article 355 duty -> possible Article 365 inference -> separately controlled Article 356 remedy -> Article 357 legislative consequence B. Article 365 proclamation -> automatic Assembly dissolution -> Article 355 approval C. Article 357 duty -> Article 356 direction -> Article 365 tax consequence D. Article 355 authorisation -> permanent Union acquisition of the State List

Answer: A.

- **A:** Correct. The sequence keeps protection duty, non-compliance inference, exceptional proclamation and legislative effect analytically distinct.
- **B:** Incorrect. Article 365 is not a proclamation and does not automatically dissolve a legislature.
- **C:** Incorrect. The Articles are assigned the wrong functions and none of them creates an ordinary tax-distribution consequence.
- **D:** Incorrect. Article 355 does not permanently transfer State legislative fields to Parliament.

Examiner trap: Use *S.R. Bommai* for review and floor-test discipline, but leave complete Article 356 duration rules to the Emergency topic.

Q18. Which statement correctly links public funds and tax assignment?

A. All State tax revenue is first credited to the Consolidated Fund of India. B. Article 266 creates separate Consolidated Funds, while Article 268 covers specified Union levies collected and appropriated by States. C. Article 269A places IGST entirely in State Consolidated Funds without apportionment. D. Article 268 is the general Finance Commission devolution article.

Answer: B.

- **A:** Incorrect. Article 266 maintains separate Union and State Consolidated Funds according to the source and governmental level.
- **B:** Correct. The public-fund rule and the special Article 268 collection/appropriation arrangement are distinct but compatible.
- **C:** Incorrect. Article 269A provides Union levy and collection with apportionment between Union and States.
- **D:** Incorrect. General divisible-pool distribution is anchored in Article 270, with recommendations under Article 280.

Examiner trap: Levy, collection, appropriation and distribution are separate verbs; a correct answer must identify each one.

Q19. Consider the following statements:

1. Article 270 concerns distribution of specified Union taxes between Union and States.
2. Article 271 permits a Union-purpose surcharge whose whole proceeds form part of the Consolidated Fund of India.
3. Article 271 applies without qualification to GST under Article 246A.
4. Specific-purpose parliamentary cesses are excluded from the divisible pool under Article 270.

Which are correct?

A. 1 and 2 only B. 2 and 3 only C. 1, 2 and 4 only D. 1, 3 and 4 only

Answer: C.

- **A:** Incorrect. Statements 1 and 2 are true, but statement 4 is also a central divisible-pool distinction.
- **B:** Incorrect. Statement 3 ignores Article 271's express GST exclusion.
- **C:** Correct. Shared taxes, surcharges and specific-purpose cesses receive different constitutional treatment.
- **D:** Incorrect. Statement 3 is false even though statements 1 and 4 correctly identify distribution and exclusion.

Examiner trap: A high devolution percentage can coexist with a narrower shareable base; never equate divisible pool with gross Union tax revenue.

Q20. Which option correctly completes the grants and procedure map?

A. Article 273 creates a permanent universal revenue-deficit grant. B. Article 274 concerns Zonal Council consultation on tax Bills. C. Article 275 is only an executive-discretion grant and Article 282 is mandatory. D. Article 273 was a temporary jute-duty arrangement; Article 274 requires Presidential recommendation for specified tax Bills; Articles 275 and 282 are distinct grant routes.

Answer: D.

- **A:** Incorrect. Article 273 was time-bound and historically specific, not a permanent equalisation grant.
- **B:** Incorrect. Article 274 deals with Presidential recommendation for specified taxation legislation, not regional councils.
- **C:** Incorrect. Article 275 provides constitutional grants-in-aid, whereas Article 282 permits either level to make public-purpose grants.
- **D:** Correct. It preserves the historical, procedural, constitutional-grant and discretionary-grant distinctions.

Examiner trap: Do not collapse Article 275 Finance Commission-linked grants and Article 282 public-purpose spending into one transfer category.

Q21. The Finance Commission under Article 280:

A. is constituted by the President every fifth year or earlier and recommends vertical distribution, inter se shares and grant principles B. is a permanent executive department chaired by the Union Finance Minister C. makes recommendations that automatically amend the Constitution D. replaces State Finance Commissions and the GST Council

Answer: A.

- **A:** Correct. Its periodic constitutional mandate includes tax distribution and grants, with later additions concerning local-body fund augmentation.
- **B:** Incorrect. It is periodically constituted by the President, not a permanent ministry or cabinet committee.
- **C:** Incorrect. Recommendations require governmental consideration and Article 281 parliamentary laying; they are not self-amending law.
- **D:** Incorrect. State Finance Commissions and the GST Council have different constitutional levels and functions.

Examiner trap: Calling the Finance Commission 'quasi-judicial' or a 'balancing wheel' is descriptive textbook language, not constitutional text.

Q22. Which statement reflects the accepted Sixteenth Finance Commission position for 2026-27 to 2030-31?

A. States receive 42 percent of gross Union tax revenue. B. States receive 41 percent of the divisible pool; the horizontal formula includes contribution to State GDP alongside equalisation-related criteria. C. Tax effort alone determines every State's share. D. Revenue-deficit and State-specific grants were constitutionally abolished for all future Commissions.

Answer: B.

- **A:** Incorrect. The accepted share is 41 percent of net proceeds in the divisible pool, not 42 percent of gross tax revenue.
- **B:** Correct. The February 2026 Explanatory Memorandum records the vertical share and the six accepted horizontal criteria.
- **C:** Incorrect. The formula uses multiple criteria, and tax effort was not retained in the accepted Sixteenth Commission formula.
- **D:** Incorrect. The Commission did not recommend those grants for this award period; no permanent constitutional prohibition was created.

Examiner trap: A Finance Commission recommendation is dated to its award period; it is not a timeless constitutional percentage or formula.

Q23. For a formal GST Council decision, which voting structure is correct?

A. Simple majority, with equal votes for every government B. Two-thirds majority, with the Union holding one-half of votes C. Three-fourths weighted majority of members present and voting; Union one-third, States together two-thirds D. Unanimity is constitutionally mandatory in every case

Answer: C.

- **A:** Incorrect. Article 279A creates weighted voting rather than one-government-one-vote simple majority.
- **B:** Incorrect. The Union has one-third, not one-half, of the weighted vote.
- **C:** Correct. The formula makes both Union participation and substantial State support necessary for a formal decision.
- **D:** Incorrect. Consensus is a valuable practice, but the constitutional text supplies a weighted voting threshold.

Examiner trap: Quorum is one-half of total membership; do not confuse quorum with the three-fourths decision threshold.

Q24. What did Union of India v. Mohit Minerals (2022) hold about the GST Council?

A. Its recommendations override every inconsistent State law under Article 254. B. It has no constitutional significance once States disagree. C. Only the Union possesses primary GST legislative power. D. Its recommendations are persuasive and products of collaborative dialogue, while Parliament and States possess simultaneous legislative power.

Answer: D.

- **A:** Incorrect. Article 246A's special simultaneous design is not governed by an automatic Article 254 Council override.
- **B:** Incorrect. Non-binding recommendations still structure harmonisation, negotiation and statutory implementation.
- **C:** Incorrect. States possess GST law-making authority within the constitutional design, subject to the inter-State-supply rule.
- **D:** Correct. The Court protected legislative autonomy while emphasising cooperation and the Council's persuasive role.

Examiner trap: Non-binding is not synonymous with optional, irrelevant or incapable of shaping enacted GST law.

Q25. Under Article 293, when does a State require Union consent for further borrowing?

A. When a Union loan to the State or a Union-guaranteed loan remains outstanding B. Whenever the State borrows from any source, even with no outstanding Union-linked loan C. Only during a Financial Emergency D. Only after the Finance Commission refuses a grant

Answer: A.

- **A:** Correct. Clause (3) links consent to outstanding Union loans or Union-guaranteed loans, and clause (4) permits conditions.
- **B:** Incorrect. The text does not impose a universal consent rule detached from the outstanding-loan condition.
- **C:** Incorrect. Article 293 is an ordinary fiscal-federal provision and does not wait for Article 360.
- **D:** Incorrect. Finance Commission grants and borrowing consent are separate mechanisms.

Examiner trap: The Kerala litigation concerns the contested breadth of current borrowing controls; the 2024 interim order did not settle that merits issue.

Q26. Which statement correctly compares the two 1956 river-water statutes?

A. Both create binding tribunals for every basin automatically. B. The River Boards Act provides an advisory development mechanism; the Inter-State River Water Disputes Act provides dispute-specific adjudication and a jurisdiction bar. C. The River Boards Act repeals Article 131, while the Disputes Act creates Zonal Councils. D. Both were replaced by the 2019 Amendment Bill.

Answer: B.

- **A:** Incorrect. A River Board is advisory, and tribunal creation follows the statutory dispute process rather than automatic basin coverage.
- **B:** Correct. Regulation/development advice and adjudication are separate institutional responses to inter-State waters.
- **C:** Incorrect. Neither Act creates Zonal Councils, and Article 131 is subject to the constitutional and statutory jurisdiction design.
- **D:** Incorrect. The 2019 Bill did not become law, so the existing Acts remain operative.

Examiner trap: Do not use 'river board', 'tribunal', 'management authority' and 'Inter-State Council' as interchangeable labels.

Q27. Which proposition about Articles 131 and 262 is accurate?

A. Article 131 decides every political disagreement even without a legal right. B. Article 262 itself automatically bars courts without parliamentary legislation. C. Article 131 covers qualifying legal-right disputes, while Parliament may use Article 262 to create adjudication and exclude courts for defined water disputes. D. An Inter-State Council recommendation binds the Supreme Court in an Article 131 suit.

Answer: C.

- **A:** Incorrect. Article 131 requires a dispute on which the existence or extent of a legal right depends.
- **B:** Incorrect. Article 262 authorises Parliament; the statutory bar is supplied by legislation such as section 11 of the 1956 Act.
- **C:** Correct. The provisions create related but distinct federal adjudication routes with a water-specific exclusion possibility.
- **D:** Incorrect. Article 263 advice has no power to bind constitutional adjudication.

Examiner trap: Water allocation may involve negotiation, adjudication and implementation, but the legal jurisdiction for each stage must be identified separately.

Q28. Which institutional classification is correct?

A. Inter-State Council-statutory; Zonal Councils-constitutional; NEC-executive B. Inter-State Council-judicial; Zonal Councils-executive; NEC-constitutional C. All three are constitutional bodies because they coordinate States D. Inter-State Council-Article 263 and 1990 Order; Zonal Councils-1956 statute; NEC-separate 1971 statute

Answer: D.

- **A:** Incorrect. It reverses the constitutional enabling source and both statutory foundations.
- **B:** Incorrect. None of these advisory forums is a court, and the status labels are wrongly assigned.
- **C:** Incorrect. Similar intergovernmental functions do not create identical legal status.
- **D:** Correct. The constitutional provision, Presidential establishment order and two different statutes must be kept distinct.

Examiner trap: The NEC is not a sixth Zonal Council, even though both perform regional coordination functions.

Q29. Article 261 provides that:

A. full faith and credit extends across India to public acts, records and judicial proceedings, with civil judgments executable according to law B. every State criminal law automatically operates and is enforced in every other State C. only Union records receive recognition outside their territory D. Parliament cannot prescribe the manner of proof or effect

Answer: A.

- **A:** Correct. The clause supports legal continuity while allowing parliamentary rules of proof/effect and nationwide civil execution.
- **B:** Incorrect. Clause (3) specifically addresses final civil judgments and does not nationalise every State penal law.
- **C:** Incorrect. The text includes the Union and every State, not Union documents alone.
- **D:** Incorrect. Article 261(2) expressly authorises Parliament to prescribe proof and effect.

Examiner trap: Full faith and credit recognises legal acts across borders; it does not merge State jurisdictions or erase criminal-law limits.

Q30. After Jindal Stainless (2016), which statement best describes Part XIII?

A. Every State tax affecting goods is invalid unless it is compensatory. B. Article 301 does not create tax immunity; Article 304(a) centrally tests discriminatory taxation, while Article 304(b) is a separate restriction route. C. Article 304(b) validates a discriminatory tax whenever public interest is claimed. D. Only Parliament, never a State, may impose any trade restriction.

Answer: B.

- **A:** Incorrect. The nine-judge Bench rejected the compensatory-tax doctrine as the controlling constitutional test.
- **B:** Correct. The common-market guarantee operates through non-discrimination and the distinct textually permitted restrictions.
- **C:** Incorrect. A reasonable restriction under clause (b) does not cure discrimination prohibited by clause (a).
- **D:** Incorrect. States possess bounded authority under Article 304, including taxation and reasonable public-interest restrictions.

Examiner trap: Previous Presidential sanction belongs to Article 304(b), not to every non-discriminatory tax under Article 304(a).

Q31. Which commission recommendation set is correctly matched?

A. Rajamannar-retain all centralising arrangements; Sarkaria-abolish ISC; Punchhi-make Article 356 automatic B. First ARC-oppose delegation; Sarkaria-treat Article 356 as routine; Punchhi-abolish Zonal Councils C. First ARC-ISC/delegation/resources; Sarkaria-last-resort Article 356 and Concurrent consultation; Punchhi-stronger councils and updated Governor/fiscal norms D. All commission recommendations became binding constitutional amendments on submission

Answer: C.

- **A:** Incorrect. Rajamannar sought extensive State autonomy, Sarkaria promoted the ISC, and Punchhi did not propose automatic President's Rule.
- **B:** Incorrect. The First ARC favoured delegation, while Sarkaria viewed Article 356 as a last resort and Punchhi sought stronger coordination.
- **C:** Correct. The option accurately captures the distinct reform emphases while preserving their recommendatory status.
- **D:** Incorrect. Commission reports require separate constitutional, statutory or executive adoption before acquiring legal force.

Examiner trap: A marks-worthy commission reference names the diagnosed problem and proposal, then states whether it was adopted.

Q32. Which reform package best balances Union capacity with State autonomy?

A. Replace all State discretion with uniform Union directions and conditional grants. B. Treat every intergovernmental dispute as non-justiciable political bargaining. C. Make every council recommendation binding without constitutional amendment. D. Regular consultation, transparent divisible-pool data, reasoned discretion, objective borrowing conditions, shared river data and enforceable implementation

Answer: D.

- **A:** Incorrect. Uniform command may improve speed but would ignore constitutionally assigned State responsibility and regional variation.
- **B:** Incorrect. Article 131, judicial review and statutory tribunals remain necessary for legal-right disputes.
- **C:** Incorrect. Advisory forums cannot be transformed into binding authorities merely by assertion.
- **D:** Correct. The package pairs national coordination with participation, evidence, legal accountability and predictable fiscal rules.

Examiner trap: Balanced reform should repair the institution matched to the friction rather than repeat 'cooperative federalism' as an unexplained slogan.

PYQS AND ANSWER PRACTICE

Routed PYQs with complete solutions

Eleven direct/supporting routes are retained exactly by year, paper and demand. The three objective answers are printed only because final official Set-A keys are held locally.

PYQ 1 - UPSC GS-II 2019, Q4 - direct

Question: From the resolution of contentious issues regarding distribution of legislative powers by the courts, "Principle of Federal Supremacy" and "Harmonious Construction" have emerged. Explain. **10 marks | 150 words**

Demand decoding: Explain requires a sequential doctrine answer: allocation, reconciliation, irreconcilable conflict and qualified supremacy.

Model solution

The Seventh Schedule distributes legislative fields, but modern laws overlap. Courts therefore reconcile entries before invalidating legislation.

Harmonious construction gives broad meaning to each entry while preserving meaningful operation of both Union and State fields. **Pith and substance** supports this approach: if a law's dominant character lies within competence, incidental encroachment survives.

Federal supremacy operates when reconciliation fails. Article 246 gives Union List predominance through its notwithstanding clause. On a Concurrent subject, Article 254 ordinarily makes parliamentary law prevail over repugnant State law. A State law reserved for and receiving Presidential assent may operate within that State, but Parliament can subsequently override it.

The doctrines are therefore sequential, not contradictory. Harmonious construction protects federal autonomy; supremacy prevents legal paralysis. Sarkaria described federal supremacy as a technique to avoid absurdity and resolve conflict.

Thus, Indian legislative federalism is accommodative in interpretation but Union-weighted at the point of irreconcilable conflict.

Answer-prose count: 148 words.

Examiner focus: It defines both doctrines, anchors Articles 246/254 and shows their order rather than listing them. In the exam, draw a three-arrow sequence-pith and substance -> harmonious construction -> Article 254-and retain the Sarkaria line only if space permits.

PYQ 2 - UPSC GS-II 2020, Q11 - direct

Question: The Indian Constitution exhibits centralising tendencies to maintain unity and integrity of the nation. Elucidate in the perspective of the Epidemic Diseases Act, 1897, the Disaster Management Act, 2005 and the recently passed Farm Acts. **15 marks | 250 words**

Demand decoding: Elucidate requires showing how emergency and Concurrent-field laws reveal centralising capacity, with both necessity and federal cost.

Model solution

India's holding-together federation gives the Union exceptional capacity to coordinate national crises and markets. Recent legislation showed both the necessity and federal cost of that design.

During COVID-19, the Union used the Disaster Management Act, 2005 for nationwide directions, while the Epidemic Diseases Act, 1897 operated through State measures. Uniform restrictions, procurement and movement rules supplied scale but also compressed State policy space in public health, a State subject.

The 2020 Farm Acts relied substantially on Concurrent List Entry 33 concerning trade in foodstuffs, yet affected agriculture and markets associated with State List Entries 14 and 28. States argued that legal competence was being used without adequate federal consultation. The Acts were repealed in 2021, demonstrating political federalism and mobilisation.

Other centralising tools include residuary power, Articles 249, 250, 253 and 356, All-India Services, conditional schemes and fiscal dependence. However, centralisation is not unlimited: *S.R. Bommai* makes federalism Basic Structure; courts apply pith and substance; GST requires shared institutions; States retain electoral and implementation power.

Therefore, national coordination may justify central legislation, but legitimacy requires necessity, clear List competence, consultation and proportionality. Unity is strengthened when Union capacity works through cooperative institutions rather than treating States as implementing agencies.

Answer-prose count: 200 words.

Examiner focus: It uses the named statutes and Farm Acts, connects List entries, and balances centralisation with Bommai and political repeal. Compress the general centralising-tool list to one sentence and spend the saved words on consultation and proportionality, which answer the evaluative edge.

PYQ 3 - UPSC GS-II 2021, Q11 - supporting

Question: The jurisdiction of the Central Bureau of Investigation regarding lodging an FIR and conducting a probe within a particular State is being questioned by various States. However, the power of States to withhold consent to the CBI is not absolute. Explain with special reference to the federal character of India. **15 marks | 250 words**

Demand decoding: Explain the statutory consent rule, its constitutional exceptions and why neither State consent nor Union investigation is absolute.

Model solution

Police is a State subject, while the CBI exercises investigative powers through the Delhi Special Police Establishment Act, 1946. Section 6 therefore requires State consent for DSPE jurisdiction within a State.

General consent permits routine registration; withdrawal ordinarily requires case-specific consent for fresh cases. This is a real federal safeguard against an unrestricted parallel central police force.

The safeguard is not absolute. The Supreme Court under Article 32 and High Courts under Article 226 may order a CBI probe without State consent to secure fair investigation and fundamental rights. Withdrawal also does not automatically nullify every validly commenced case, and territorial or accused-specific questions can affect jurisdiction.

In *State of West Bengal v. Union of India* (2024), the Supreme Court rejected the Union's preliminary objection and allowed the State's Article 131 suit to proceed; it did not finally decide all substantive claims.

The federal balance requires State police autonomy, national coordination for cross-border corruption and judicial power where local investigation is compromised. A dedicated CBI statute, transparent consent protocols and independent appointment/accountability mechanisms would reduce political confrontation.

Thus, consent is constitutionally significant statutory federalism, but it cannot override constitutional-court power.

Answer-prose count: 191 words.

Examiner focus: It distinguishes DSPE consent, constitutional-court power and the limited 2024 West Bengal ruling. Add a two-column consent/exception mini-table in rough work; do not claim the 2024 ruling finally decided the merits.

PYQ 4 - UPSC GS-II 2022, Q13 - supporting

Question: While the national political parties in India favour centralisation, the regional parties are in favour of State autonomy. Comment. **15 marks | 250 words**

Demand decoding: Comment requires testing the proposition as a political tendency, then qualifying it through changing party incentives and institutions.

Model solution

The claim captures a recurrent incentive, not an iron law. National parties seek uniform programmes, national markets and coordinated security, and therefore often favour Union legislation, centrally sponsored schemes and common institutions. Regional parties derive authority from territorially concentrated mandates and more often demand fiscal space, linguistic recognition, control over State subjects and restraint in the use of Governors and central agencies.

Yet party position changes with office. A national party governing a State may resist Union encroachment, while a regional party participating in a Union coalition may support central measures. Coalition governments, the GST Council and Rajya Sabha bargaining have periodically enlarged State influence. Conversely, a dominant parliamentary majority can reduce negotiated federalism.

The constitutional answer is institutional rather than partisan: regular Inter-State Council consultation, meaningful scrutiny of Concurrent legislation, predictable Finance Commission transfers and neutral constitutional offices. Thus, party geography shapes federal preferences, but constitutional forums must prevent temporary electoral advantage from defining Centre-State balance.

Answer-prose count: 157 words.

Examiner focus: It explains national/regional incentives, supplies coalition and Rajya Sabha counter-evidence, and avoids treating party labels as permanent doctrine. Use one concrete coalition-era illustration if confidently recalled; otherwise preserve the office-dependent qualification rather than inventing an example.

PYQ 5 - UPSC GS-II 2023, Q13 - supporting

Question: Account for the legal and political factors responsible for the reduced frequency of use of Article 356 by the Union Governments since the mid-1990s. **15 marks | 250 words**

Demand decoding: Account for requires causal explanation of both legal and political factors behind reduced Article 356 use.

Model solution

The decline reflects both judicial discipline and a changed party system. In *S.R. Bommai* (1994), the Supreme Court made Article 356 proclamations reviewable, required relevant material, protected floor tests as the normal majority test and permitted restoration of a dismissed government. Parliamentary approval and the possibility of judicial invalidation raised the legal cost of partisan dismissal.

Politically, coalition governments after 1989 depended on regional parties, whose bargaining power discouraged arbitrary action against States. Stronger regional mandates, public criticism of central misuse and the reputational cost of federal confrontation also mattered. Later single-party Union majorities did not erase these constraints because *Bommai* doctrine, electoral competition and the Rajya Sabha continued to impose checks.

The decline does not mean Centre-State conflict disappeared; disputes shifted toward Governors, investigations, finance and assent. Article 356 remains an emergency remedy, while Article 365 non-compliance is only relevant material. The reduced frequency therefore shows constitutional law and political federalisation reinforcing each other.

Answer-prose count: 156 words.

Examiner focus: It links Bommai safeguards with coalition/regional-party incentives and distinguishes declining proclamations from continuing federal conflict. Organise the body under Legal and Political subheads and end by naming the shift toward Governors, finance and agencies.

PYQ 6 - UPSC GS-II 2023, Q15 - direct

Question: Explain the significance of the 101st Constitutional Amendment Act. To what extent does it reflect the accommodative spirit of federalism? **15 marks | 250 words**

Demand decoding: Explain significance and assess extent: first map the 101st Amendment, then evaluate how far its design is accommodative.

Model solution

The 101st Amendment created a shared constitutional tax field rather than merely altering rates. Article 246A gives Parliament and State legislatures GST competence; Article 269A governs inter-State GST apportionment; Article 279A creates the GST Council with Union and State representation. It replaced multiple indirect taxes with a destination-based system and supported a common market.

Its accommodative character lies in compulsory bargaining: the Union has one-third voting weight, States collectively two-thirds, and decisions require a three-fourths weighted majority. Consensus practice, compensation arrangements and joint administration converted fiscal autonomy into negotiated interdependence. *Mohit Minerals* further held Council recommendations recommendatory, preserving legislative authority at both levels.

Accommodation remains incomplete. States lost independent rate space, compensation disputes exposed dependence, and unequal revenue capacity affects bargaining power. A common tax can become centralising if consultation weakens. The Amendment is therefore a major example of cooperative fiscal federalism, but its success depends on consensus, transparent data, credible dispute resolution and respect for State legislative choice.

Answer-prose count: 159 words.

Examiner focus: It cites Articles 246A/269A/279A, weighted voting, consensus and *Mohit Minerals*, followed by limits on State fiscal space. Include the one-third/two-thirds/three-fourths voting formula; omit rate trivia unless the question asks current GST reform.

PYQ 7 - UPSC GS-II 2024, Q13 - direct

Question: What changes has the Union Government recently introduced in the domain of Centre-State relations? Suggest measures to be adopted to build the trust between the Centre and the States and for strengthening federalism. **15 marks | 250 words**

Demand decoding: Suggest demands two balanced halves: identify recent changes and offer institution-matched trust remedies.

Model solution

Centre-State relations have shifted from plan-era bargaining to a mixed Finance Commission-GST-NITI architecture, while administrative and legislative disputes have intensified.

Changes: The Planning Commission was replaced by NITI Aayog; the 14th Finance Commission increased untied devolution, followed by 41% under later Commissions. GST pooled indirect-tax autonomy through a constitutional Council. Centrally sponsored schemes, cesses and surcharges, borrowing conditions and central agencies continue to shape State choices. Governor assent, CBI consent and Concurrent-field legislation have become recurrent flashpoints.

Trust measures:

1. Convene the Inter-State Council regularly and publish implementation reports.
2. Consult States before major Concurrent List laws.
3. Follow Sarkaria/Punchhi norms for politically neutral Governors and reasoned action.
4. Reduce reliance on cesses outside the divisible pool and ensure predictable transfers.
5. Design schemes jointly with flexible State components.
6. Use consensus and a credible dispute process in the GST Council.
7. Clarify CBI powers and consent through comprehensive legislation.
8. Build shared river-basin data and compliance institutions.

S.R. Bommai makes federalism Basic Structure, but judicial protection alone cannot create cooperation.

Trust is an institutional output: States must repeatedly experience consultation before compulsion, fiscal predictability and neutral use of constitutional offices.

Answer-prose count: 193 words.

Examiner focus: It covers fiscal, legislative and administrative change and ties each remedy to ISC, GST, Finance Commission, Governor or CBI architecture. Pair every diagnosed deficit with one remedy; avoid an unstructured reform list and keep the conclusion focused on repeated institutional experience.

PYQ 8 - UPSC Prelims 2024, Q75 - direct objective

Question: Which one of the following statements is correct as per the Constitution of India?

A. Inter-State trade and commerce is a State subject under the State List. B. Inter-State migration is a State subject under the State List. C. Inter-State quarantine is a Union subject under the Union List. D. Corporation tax is a State subject under the State List.

Answer: C. OFFICIAL UPSC SET-A KEY.

- **A:** Incorrect. Union List Entry 42 covers inter-State trade and commerce.
- **B:** Incorrect. Union List Entry 81 covers inter-State migration and inter-State quarantine.
- **C:** Correct. Inter-State quarantine is expressly within Union List Entry 81.
- **D:** Incorrect. Corporation tax is within Union legislative and taxing competence.

Key discipline: The answer letter is printed because the repository holds the final official Set-A key.

PYQ 9 - UPSC GS-II 2025, Q14 - direct

Question: Examine the evolving pattern of Centre-State financial relations in the context of planned development in India. How far have the recent reforms impacted the fiscal federalism in India? **15 marks | 250 words**

Demand decoding: Examine requires a chronological fiscal transition, assessment of reforms and a graded verdict on practical autonomy.

Model solution

Centre-State finance has evolved from discretionary plan bargaining toward a more rules-based but still Union-dependent architecture.

During planned development, the Planning Commission and National Development Council shaped plan assistance, while Article 282 grants allowed broad executive discretion. The Finance Commission handled constitutional tax devolution and grants, producing parallel transfer channels.

Post-2015 reforms changed this pattern. NITI Aayog replaced the Planning Commission without assuming devolution powers. The 14th Finance Commission raised the States' tax share to 42%; later Commissions use 41%. GST pooled Union and State indirect taxes through Articles 246A, 269A and 279A, creating a common market and shared decision forum. The 16th Finance Commission retains 41% for 2026-31 and balances income distance with population, demographic, ecological and GDP-contribution criteria.

Reforms improved transparency, untied resources and institutional bargaining. *Mohit Minerals* preserves legislative autonomy by treating GST Council recommendations as non-binding.

However, vertical imbalance persists. Cesses and surcharges remain outside the divisible pool; centrally sponsored schemes impose conditions; GST narrowed independent rate space; Article 293 borrowing consent creates leverage.

Thus, fiscal federalism is more rules-based but not fiscally equal. Protecting the divisible pool, predictable schemes, robust GST dispute resolution and stronger State revenue capacity are necessary for meaningful autonomy.

Answer-prose count: 198 words.

Examiner focus: It connects plan-era discretion, Finance Commission devolution, GST and NITI with cesses, schemes and Article 293 constraints. Use a three-stage timeline-Planning era -> post-2015 -> 16th FC-and distinguish divisible-pool share from gross Union tax revenue.

PYQ 10 - UPSC Prelims 2025, Q53 - direct objective

Question: With reference to India, consider the following:

1. The Inter-State Council
2. The National Security Council
3. Zonal Councils

How many of the above were established as per provisions of the Constitution of India?

A. Only one B. Only two C. All the three D. None

Answer: A. OFFICIAL UPSC SET-A KEY.

- **1:** Article 263 provides for establishment of an Inter-State Council.
- **2:** The National Security Council is an executive, non-constitutional body.
- **3:** Zonal Councils are statutory bodies under the States Reorganisation Act, 1956.

Key discipline: 'Provided for by the Constitution' is narrower than merely serving a constitutional or national purpose.

PYQ 11 - UPSC Prelims 2025, Q89 - direct objective

Question: Consider the following statements:

Statement I: In India, State Governments have no power for making rules for grant of concessions in respect of extraction of minor minerals even though such minerals are located in their territories. Statement II: In India, the Central Government has the power to notify minor minerals under the relevant law.

Which one of the following is correct?

A. Both statements are correct and Statement II explains Statement I B. Both statements are correct but Statement II does not explain Statement I C. Statement I is correct but Statement II is not correct D. Statement I is not correct but Statement II is correct

Answer: D. OFFICIAL UPSC SET-A KEY.

- **Statement I:** Incorrect. Section 15 of the MMDR Act empowers State Governments to make rules for minor-mineral concessions.
- **Statement II:** Correct. Section 3(e) authorises the Central Government to notify minerals as minor minerals.

Key discipline: A parliamentary framework may distribute category and rule-making powers between different levels.

Six original Mains questions with full model answers

Two 10-mark answers use a 150-word ceiling; two 15-mark and two 20-mark answers use a 250-word ceiling.

Original Q1. 10 marks | 150 words

Question: Explain the constitutional relationship between Articles 256, 257, 365 and 356. Why is non-compliance with Union directions not equivalent to automatic President's Rule?

Demand decoding: Explain the 256-257-365-356 sequence and expressly rebut automaticity.

Model solution

Article 256 requires States to ensure compliance with parliamentary and applicable laws and permits Union directions for that purpose. Article 257 requires State executive power not to impede Union executive power and permits specified directions concerning national/military communications and railway protection.

Article 365 provides that failure to comply with Union directions may permit the President to hold that State government cannot be carried on according to the Constitution. It therefore supplies a relevant constitutional inference.

It does not automatically impose President's Rule. Article 356 still requires presidential satisfaction based on relevant material, parliamentary approval and temporal limits. *S.R. Bommai* makes the proclamation reviewable and ordinarily protects floor determination of political majority.

Thus, Articles 256-257 enable coordination, Article 365 marks serious non-compliance, and Article 356 supplies the exceptional remedy. Treating the sequence as automatic would convert federal directions into unrestricted Union

control.

Answer-prose count: 143 words.

Answer-writing focus: The answer separates coordination, evidentiary consequence and exceptional remedy with Bommai control. Cut the opening to one line; use a four-box chain and reserve the final sentence for why automaticity would destroy federal balance.

Original Q2. 10 marks | 150 words

Question: Distinguish the Inter-State Council, Zonal Councils, North Eastern Council and NITI Aayog by source, composition logic and function.

Demand decoding: Distinguish four bodies by legal source, composition logic and function.

Model solution

These bodies all facilitate coordination but have different legal foundations.

The **Inter-State Council** is contemplated by Article 263 and was established by presidential order in 1990. Chaired by the Prime Minister, it advises on disputes and common policy; its recommendations are not binding.

The **five Zonal Councils** are statutory bodies under the States Reorganisation Act, 1956. Chaired by the Union Home Minister, they address regional administrative and inter-State issues.

The **North Eastern Council** is a separate statutory institution under the NEC Act, 1971; it is not a sixth Zonal Council.

NITI Aayog was created by executive resolution in 2015. It is a policy and development forum, not a constitutional or statutory body and not a substitute for the Finance Commission.

Thus, "intergovernmental body" does not establish legal status. Article, statute and executive resolution must be separately identified.

Answer-prose count: 137 words.

Answer-writing focus: Each body is classified by Article, statute or executive resolution and the NEC trap is expressly closed. Present a compact four-row table; add that Article 263 enables presidential establishment rather than saying the Constitution itself permanently constituted the ISC.

Original Q3. 15 marks | 250 words

Question: Examine whether All-India Services strengthen administrative unity at an excessive cost to State autonomy.

Demand decoding: Examine both administrative-unity gains and State-autonomy costs before a balanced judgment.

Model solution

Article 312 permits common services for Union and States after a Rajya Sabha national-interest resolution. IAS, IPS and Indian Forest Service embody India's integrated administrative federalism.

Benefits: Common recruitment and training establish professional standards, enable movement of experience across States and Union, and provide continuity during crises. Officers serving State cadres possess local administrative knowledge while connecting implementation to national law and programmes. Ambedkar's "strategic posts" rationale remains relevant for a diverse federation.

Autonomy costs: Cadre allocation, deputation, disciplinary control and central empanelment can create divided accountability. States may perceive officer shortages or recall/deputation disputes as Union pressure. Uniform career incentives can also weaken responsiveness to local political priorities.

The design is not inherently anti-federal because officers work under State governments in State posts and new services require Rajya Sabha approval. The problem arises when shared control becomes unilateral command.

Reform should use transparent deputation rules, meaningful State consultation, predictable cadre strength, protection against partisan transfer, and joint performance frameworks. Specialised State services should be strengthened rather than displaced.

Thus, All-India Services are a federal bridge, not merely a centralising instrument. Their legitimacy depends on genuinely shared personnel governance.

Answer-prose count: 190 words.

Answer-writing focus: It gives constitutional basis, mechanisms, competing accountability concerns and implementable personnel reforms. Name the Rajya Sabha trigger early and compress benefits to three points so the shared-control reform paragraph remains visible.

Original Q4. 15 marks | 250 words

Question: Cesses, surcharges and centrally sponsored schemes can re-centralise fiscal federalism even when tax devolution remains high. Analyse.

Demand decoding: Analyse how non-divisible levies and conditional schemes alter effective autonomy despite a headline devolution share.

Model solution

The Finance Commission may recommend a substantial State share, but effective fiscal autonomy depends on the base being shared and the conditions attached to other transfers.

Article 270 distributes the divisible pool, while Article 271 permits Union-purpose surcharges whose proceeds are not shareable. Cesses are similarly commonly kept outside the divisible pool. Growth in these instruments can reduce the proportion of gross Union tax revenue subject to the stated devolution percentage.

Centrally sponsored schemes support national priorities and equal citizenship, but detailed guidelines, matching contributions and fragmented funding may constrain State budgeting. States carry major responsibilities in health, agriculture, police and local services, so conditional transfers can convert them into implementation agencies.

Counterarguments matter. Cesses can finance identifiable national externalities; schemes can reduce interstate inequality; and the 16th Finance Commission retains 41% rules-based vertical devolution. State capacity and accountability also justify performance conditions.

The corrective is not abolition but transparency and consent: sunset clauses and reporting for cesses, a protected divisible-pool base, fewer and more flexible schemes, predictable Union shares, outcome-based rather than input-heavy conditions, and regular ISC/GST consultation.

Thus, formal devolution and practical autonomy can diverge. Fiscal federalism must be evaluated through total transfer design, not the headline percentage alone.

Answer-prose count: 202 words.

Answer-writing focus: It distinguishes Article 270 from Article 271 and tests both justification and federal cost before calibrated reforms. Avoid unsupported quantitative claims; add a one-line distinction between the divisible pool and gross Union tax revenue.

Original Q5. 20 marks | 250 words

Question: Critically evaluate the constitutional and institutional framework for inter-State river-water disputes in India.

Demand decoding: Critically evaluate constitutional design, statutory process, implementation weaknesses and reform.

Model solution

River basins ignore political boundaries, making water disputes a test of federal adjudication, scientific capacity and political compliance.

Article 262 authorises Parliament to provide adjudication and exclude court jurisdiction. The Inter-State River Water Disputes Act, 1956 creates dispute-specific tribunals, while the River Boards Act, 1956 envisages cooperative basin management.

Strengths: Tribunals provide specialised fact-finding; awards are final and binding under statute; jurisdiction exclusion can prevent parallel litigation; Union facilitation offers a national forum.

Weaknesses: Delays occur in negotiation, tribunal creation, evidence and decision. States dispute flow data, project effects and distress-year sharing. Publication and implementation may generate new litigation. Ad-hoc tribunals lose institutional memory, and climate change makes historical averages less reliable.

The 2019 Amendment Bill proposed a dispute-resolution committee and permanent tribunal with benches, but it lapsed with the Seventeenth Lok Sabha. A later revised proposal is also not current law.

Reform requires a permanent professional secretariat even if benches remain dispute-specific, independent basin data, time-bound stages, ecological-flow and climate scenarios, transparent distress-sharing formulas, compliance monitoring and stronger river-basin organisations. Courts should retain narrow constitutional review while respecting Article 262's jurisdiction design.

Thus, adjudication is necessary but insufficient. Durable settlement requires continuous cooperative basin governance before and after an award.

Answer-prose count: 201 words.

Answer-writing focus: It covers Article 262, both 1956 laws, strengths, delay/data/climate limits and correctly bounded Bill status. Write the process as negotiation -> tribunal -> publication -> implementation; mention the Bill lapsed, not merely that it was unpassed.

Original Q6. 20 marks | 250 words

Question: The constitutional freedom of trade under Part XIII is a federal common-market guarantee, not a promise of tax-free commerce. Discuss with case law.

Demand decoding: Discuss Part XIII as a common-market guarantee using the current nine-judge doctrine.

Model solution

Articles 301-307 seek an integrated economic union while preserving regulatory and fiscal space.

Article 301 declares trade, commerce and intercourse throughout India free. Article 302 permits Parliament to impose public-interest restrictions. Article 303 generally bars preference or discrimination between States, with a parliamentary scarcity exception. States may levy non-discriminatory taxes under Article 304(a) and impose reasonable public-interest restrictions under Article 304(b) with previous presidential sanction.

Early cases complicated the framework. *Atiabari Tea* focused on measures directly and immediately restricting trade. *Automobile Transport* developed a compensatory-tax doctrine, allowing levies linked to trading facilities.

In *Jindal Stainless* (2016), a nine-judge bench rejected compensatory tax as lacking constitutional text. Article 301 does not create freedom from taxation. The central question for a State tax is hostile or protectionist discrimination under Article 304(a). Clauses (a) and (b) are distinct; a discriminatory tax cannot be saved merely as a reasonable restriction.

GST later supplied a constitutional fiscal mechanism for a common market through Articles 246A, 269A and 279A, though State participation and Council bargaining remain federal features.

Therefore, Part XIII balances integration with autonomy. It prohibits economic protectionism, not every tax or regulation. The modern test is non-discrimination, constitutional competence and procedural compliance.

Answer-prose count: 201 words.

Answer-writing focus: It maps Articles 301-304, traces doctrine and correctly centres *Jindal Stainless* on discrimination rather than tax immunity. Prioritise *Jindal Stainless*; compress the two older cases and explicitly separate Article 304(a) taxation from 304(b) restrictions.